REPORTABLE (112)

GOSPEL OF GOD CHURCH INTERNATIONAL
v
(1) MAGAGA MASEDZA (2) REUBEN MASEDZA (3) RUSAPE TOWN COUNCIL (4) ZIMBABWE REPUBLIC POLICE (5) COMMISSIONER GENERAL- ZRP (6) MINISTER OF LOCAL GOVERNMENT, PUBLIC WORKS & NATIONAL HOUSING

SUPREME COURT OF ZIMBABWE
MAVANGIRA JA, CHIWESHE JA & MUSAKWA JA
HARARE: 9 MAY 2025, 22 MAY 2025 & 9 DECEMBER 2025

S.M. Hashiti, with *E. Mubaiwa,* for the appellant

C. Damiso and *L. Uriri,* for the first and second respondents

R.B. Madiro, for the fourth, fifth and sixth respondents

No appearance for the third respondent

MAVANGIRA JA:

1. This is an appeal against part of the judgment of the High Court ('court *a quo'*) dated 6 February 2025, wherein it granted an application for a declaratory order in favour of the first and second respondents ('the respondents'). In the application for a declaratory order, the respondents sought an order declaring their right to exhume the remains of their father, the late Johanne Masowe Shoniwa ('the deceased').

FACTUAL BACKGROUND

2. The appellant, Gospel of God Church International, is a church founded by the deceased. The respondents are surviving sons of the deceased. The third respondent is Rusape Town Council, a local authority for Rusape town. The fourth respondent is the Zimbabwe Republic

Police. The fifth respondent is the Commissioner General of the Zimbabwe Republic Police. The sixth respondent is the Minister of Local Government, Public Works and National Housing.

3. Under case numbers HCH 1769/23 and HCH 1785/23, the respondents instituted separate court applications before the court *a quo*, seeking a declaratory order in terms of s 14 of the High Court Act [*Chapter 7:06*] as well as consequential relief. The respondents therein were the appellant and the third to fifth respondents. The effect of the cumulative relief sought in the two applications was to declare their right to do so, and consequently authorize, allow and enable the exhumation of their late father's remains from the appellant's shrine for purposes of reburial at an alternative site. Specifically, in HCH 1769/23 which was the main application before the court *a quo*, the respondents sought an order couched as follows:

> "**IT IS DECLARED THAT:**
> 1. The applicants have a right to exhume the remains of the late Johanne Masowe Shoniwa Masedza which are buried at Gandanzara Shrine, Rusape.
>
> 2. No costs of suit are awarded unless there is opposition to this application in which event it is prayed that the costs of the application be awarded to the applicants and be payable by the respondents opposing this application, the one paying the other to be absolved."

In HCH 1785/23 which was the subsidiary case, the respondents sought the following consequential relief:

> "**IT IS ORDERED THAT:**
> 1. The second respondent is ordered to issue a reburial permit to enable the disinterment of the remains of the late Johanne Masowe Shoniwa Masedza.
> 2. The third to fifth respondents be and are hereby ordered to enforce the disinterment of the remains of the deceased described in para 1 from the grave site at Gandanzara, Rusape.
> 3. No costs of suit are awarded unless there is opposition to the application in which it is prayed that the *(sic*) of this application be awarded to the applicants and be

payable by the respondents opposing this application, the one paying the other to be absolved."

4. The salient facts of this matter are largely common cause and appear hereunder.

4.1. The respondents' father, Peter Jack Masedza, also known as Johanne Masowe Shonhiwa Masedza ('the deceased'), was the founder of the Gospel of God Church International Church, a church with a broad international following. Over time, the church experienced divisions, giving rise to various factions, one of which was the appellant.

4.2. The deceased passed away on 14 September 1973 in Zambia and was buried at Gandanzara, Rusape, in Zimbabwe, on a property owned by leaders of the appellant. The burial place later became a sacred shrine of the church. The respondents were unable to attend their father's burial, as they and their mother held British passports, which at the time precluded them from entering Zimbabwe (then Rhodesia).

4.3. Following a period of exile from Zimbabwe, the respondents returned to the country in the early 2000s with the intention of visiting the deceased's grave. Upon being denied access, the first respondent instituted proceedings in the court *a quo* under case number HC 3379/01, seeking an order affirming their right to access their father's burial site. He prayed for the following relief:

> "1. That the applicant, members of his family, descendants of the late Johane Masowe Magaga and members of the Gospel of God Church aligned to the applicant be and are hereby allowed visitation rights known as *inter ad sepulcrum* at least twice a year for a period of one month to the grave of the late Johane Masowe Magaga at times which they will agree with the leaders of the respondent.
>
> 2. That the agreement to exercise the right of *inter ad sepulcrum* be exercised after giving at least 30 days' notice from the date at which such visitation shall occur.

3. That the applicant and members of his family be allowed to exercise the right of inter *ad sepulcrum* at least once every month for a period of seven days.
4. Costs of suit"

4.4. The application was dismissed under judgment HH 164-03 by HUNGWE J (as he then was) on the premise that the first respondent had failed to establish a right because the place in dispute was not a grave but a shrine. Irked by the decision of the court, the respondents filed the two court applications referred to in para 3 above, seeking a *declaratur* and consequential relief, culminating in the order captured in para 15 hereunder which has birthed the present appeal.

5. Before the court *a quo,* the respondents contended that they held a direct and substantial interest in the exhumation and reburial of the deceased. They argued that the deceased left no testament, written or otherwise, concerning his burial wishes. The respondents alleged that in terms of the Cemeteries Act [*Chapter 5:04*] ('Cemeteries Act'), anyone could apply for exhumation as long as such exhumation is validly ordered by the relevant authority or court of law. The respondents further submitted that they wish to have their father's remains exhumed in order to bury him elsewhere, where they can visit his grave site without interference. The respondents urged the court *a quo* to grant the application, submitting that it was in the interests of justice to allow the deceased's biological children and descendants to have access to his grave. The first respondent, as the eldest biological son, submitted that he had a duty and the right to bury his father in accordance with Roman Dutch law. It was also submitted that their father was a devout servant of God who neither desired to be idolized nor to have his grave enshrined or exploited for the benefit of the appellant's leadership.

6. In opposition, the appellant argued that the issue was easily resolved by the doctrine of *res judicata* for the reason that the respondents had been direct parties to the proceedings before

HUNGWE J (as he then was) in case number HC 3379/01. The appellant further contended that HUNGWE J's judgment had effectively barred the respondents from entering the appellant's private property for visitation purposes, thereby precluding them from asserting any right of access to the property for purposes of reburial. Accordingly, it was submitted that the deceased's remains were interred not in a cemetery, but at a shrine, which HUNGWE J had definitively characterized as transcending a mere burial ground to constitute a place of worship. The appellant also maintained that the respondents lacked the requisite *locus standi* because the matter had already been conclusively determined by HUNGWE J, rendering the respondents' legal standing extinguished at the time the application for a *declaratur* was instituted.

7. While the appellant did not contest that the respondents possessed a real and substantial interest in the matter, it also opposed the application on the grounds that the burial site at Gandanzara in Rusape, was specifically chosen by the deceased. The appellant averred that the deceased had expressed and left a dying wish to his senior wife and the most senior pastor of the appellant indicating that he desired to be buried there. The appellant further submitted that the deceased had also instructed that a tombstone be built on his grave and every year a synod be held at such a place where all his followers would congregate. The appellant further submitted that during his lifetime, the deceased had deliberately distanced himself from all his children and regarded them as followers of the church without any special status. In particular, the appellant alleged that the first respondent had been disowned by the deceased on account of his insatiable thirst for power.

8. The appellant contended that the respondents could not be granted the exhumation of the deceased because he was not buried in a public cemetery but a sacred shrine. It also contended that the burial place of the deceased could no longer be considered as a graveyard for the purposes of exhumation, as it was his presence at the burial site which made the place a shrine. The appellant further submitted that it was incumbent upon the respondents to cite the Minister of Home Affairs and Cultural Heritage whose function, amongst others, is to preserve national monuments.

9. It was also the appellant's position that exhumations could only be done with the approval of the Minister of Local Government, Public Works and National Housing (the Minister) or any other person authorized by him in terms of s 38(4) of the Cemeteries Act and that no such approval had been sought by the respondents. Furthermore, that the respondents had therefore prematurely made the application for a *declaratur* when they had not followed the procedure laid out in the Cemeteries Act. The appellant further argued that the respondents were seeking a *declaratur* and consequential relief fifty years after the burial of the deceased, and that, to that end the matter had prescribed. The appellant contended that a declaratory order coupled with consequential relief is a debt in terms of the Prescription Act [*Chapter 8:11*].

10. The fourth respondent filed an opposing affidavit and protested his citation and that of the third respondent on the basis that no cause of action or relief was sought from them.

11. In response to whether the High Court was the appropriate forum for initiating the matter, the respondents acknowledged that exhumation requires authorization from the relevant authority, specifically the Minister of Home Affairs and Cultural Heritage or it could be effected through a court order. The respondents however contended that the High Court was the correct forum

as HUNGWE J had already decided on the status of the burial place of their father. The respondents submitted that their father's grave was declared a shrine and not a grave and to that extent it was private property.

12. The court *a quo* held that the relief sought before it differed materially from that pursued in case number HC 3379/01. It observed that following the first respondent's unsuccessful attempt in that matter to gain access to their father's grave, both respondents returned to court seeking the exhumation and removal of their father's remains from the shrine. The court *a quo* therefore held that whilst the cause of action in HC 3379/01 was about visitation rights to the grave, the matter before it sought that the court declare that the respondents had a right to exhume the remains of the deceased.

13. The court further found that no individual allegedly privy to the deceased's burial wishes, was available to testify, rendering evidence on that issue in the founding affidavit hearsay and inadmissible. On the issue of prescription, the court found that the issue had not been properly pleaded. The court *a quo* ruled that the parties over the years had been in and out of court on related matters. It further held that the lengthy delay in bringing the application before it was explained by the fact that the respondents had been engaged in related litigation during the intervening period.

14. The court *a quo* also held that in judgment HH 164/03, HUNGWE J (as he then was) made no declaration to the effect that the deceased's remains had become the property of the appellant. It found that the respondents had demonstrated that, as children of the deceased, they had a direct and substantial interest in the matter. It also ruled that, to that end, any judgment for or

against them would affect them substantially. The suggestion that the respondents' claim had prescribed was consequently dismissed.

15. In addition, the court *a quo* found no basis in law for the proposition that the conversion of a burial site into a shrine precludes exhumation. It held that such authorization falls within the purview of the Minister of Local Government, Rural and Urban Development ('the Minister') or any other Minister to whom the President may assign the administration of the Cemeteries Act. The said court emphasized that, save where reviewable irregularities are established, it could not usurp executive authority in this regard. It held that the respondents were correct in submitting that whether a cemetery is closed or not, exhumation therefrom is a Ministerially driven process in terms if s 36 of the Cemeteries Act. It held that the respondents never sought such approval from the Minster. The court *a quo* further stated that it would not interfere in matters of executive function, more so where they are governed by statute. It therefore held that the respondents could seek exhumation from the courts only after following due process. In the result, it granted an order in the following terms:

    1. The main application Case No. HC 1769/23 succeeds.
    2. The applicants have a right to exhume the remains of the late Johanne Masowe Shoniwa Masedza which are buried at Gandanzara Shrine Rusape, subject their following due process. (*sic*)
    3. Case No. HC 1785/23 is dismissed.
    4. In respect of both Case No. HC 1769/23 and HC 1785/23 each party shall pay its own costs.
    5. This order disposes of both matters and the Registrar must file a copy of the order in both case No. HCH 1769/23 and HCH 1785/23.

THIS APPEAL

16. The appellant has appealed to this Court against the judgment of the court *a quo* on the following grounds of appeal:

    1. The court *a quo* erred in its failure to find that a *cadaver* being *nullius in bonis* is incapable of ownership, and that the deceased's progeny had no automatic right of exhumation and reburial cognizable at law in any event ahead of an intestate heir.

    2. The court *a quo* erred and misdirected itself in finding that appellant had not raised or pleaded prescription *contra* averments to that effect in the pleadings of record;

    3. A *fortiori*, the court *a quo* further erred in failing to find that by approaching the court 54 years after the fact, the first and second respondents' rights had prescribed and become non-existent *contra* the requirements of section 14 of the High Court Act.

    4. The court *a quo* further erred and misdirected itself in failing to find that the dispute was *res judicata* by the earlier decisions of the High Court *per* HUNGWE J and SMITH J as they then were, were by the respondents own admission between the same parties and or their privies and had definitively settled the dispute between them.

    5. The court *a quo* further erred in that HUNGWE J's judgment having definitively held the resting place of Madzibaba Johanne Masowe to be a shrine, the law of exhumations under the Act did not apply as respondents had neither *locus standi* nor rights in respect of Appellant's private property.

    6. The court *a quo* further erred in its failure to find as it should that the burial site in issue did not fall within the definition of a place susceptible to exhumation in terms of the Cemeteries Act.

RELIEF SOUGHT

1. That the instant appeal be and is hereby allowed with costs.
2. Paragraphs 1 and 2 of the operative part of the judgment of the court *a quo* be and are hereby set aside and substituted with the following;

> "The application for a *declaratur* in HC 1769/23 be and is hereby dismissed with costs on the higher scale."

SUBMISSIONS BEFORE THIS COURT ON THE MERITS OF THE APPEAL

By the appellant

17. At the hearing, Mr *Hashiti,* for the appellant, argued that the respondents failed to establish a right, as a cadaver is *nullius in bonis* meaning that it was incapable of ownership. He submitted that the court *a quo* erred in relying on cultural practices when the respondents had not pleaded customary law in their founding affidavit but raised it belatedly in their answering affidavit, which was irregular.

18. Counsel further contended that the respondents' claim had prescribed, as they sought reburial fifty-four years after the deceased's burial. He submitted that the court *a quo* erred in finding that prescription had not been pleaded, noting that s 20 (2) of the Prescription Act allows the issue to be raised at any stage of the proceedings. In any event, so he argued, the point was addressed in the opposing affidavit, and it was sufficient to challenge the timelines of the claim without expressly labelling it as a plea of prescription.

19. Counsel further contended that the matter was *res judicata*. He submitted that the first respondent's application before HUNGWE J, under case number HC 3379/01, for visitation rights to the deceased's burial site amounted to a tacit acknowledgment that the deceased was interred in his rightful and lawful place. In support of this, counsel relied on *Galante* v

Galante 2002 (1) ZLR 144 (H), arguing that such acceptance gives rise to an issue estoppel. Counsel also submitted that the respondent cannot approbate and reprobate by initially acknowledging the lawfulness of the burial site and later challenging its legality.

By the first and second respondents

20. *Per contra*, Ms *Damiso,* for the respondents, opposed the appeal, arguing that the court *a quo* exercised its discretion properly in granting the *declaratur* and the appellant failed to show that it was grossly unreasonable. She clarified that the respondents were not asserting ownership over the remains, but merely the right to exhume them.

21. Counsel submitted that the answering affidavit only responded to issues raised earlier and that prescription must be specifically pleaded, which the appellant had not done. She distinguished the *Galante* case (*supra*), stating that estoppel does not arise in this instance as it is a question of fact requiring an unequivocal admission, rather than one that may be implied.

22. There was also engagement on the possibility of an order by consent reflecting in clear terms that in terms of the order of the court *a quo,* the applicants therein merely have a right to approach the Minister with an application or request for the exhumation of the deceased's remains.

23. Counsel for the appellant submitted that the appellant was opposed to such an order on the grounds, firstly that there is an extant judgment by HUNGWE J which the parties have acceded to and which says that the place where the deceased is buried is not a cemetery. Secondly, fifty-five years having elapsed, even an approach to the Minister would be belated and would have prescribed. The deceased must be left to rest in peace. Thirdly, the respondents are just two of many siblings or progeny of the deceased who have not been cited. There is nothing

to stop the others from seeking similar relief after the intended reburial by the respondents. Public policy dictates that there must be an end to the dispute. Furthermore, in any event, so counsel submitted, no one has sought relief as so couched.

24. Counsel for the respondents, on the other hand, submitted that the respondents were not averse to such an order as that would clarify and give meaning to para 2 of the order by the court *a quo*. (For the said para 2, refer to para 15 above). He further submitted that such order would not change para 2 but would merely state what due process means. Regarding the submission by counsel for the appellant that the extant HUNGWE J judgment recognises that the burial site is not a cemetery, counsel for the respondents submitted that the court *a quo* stated that the said remarks by HUNGWE J were orbiter. Furthermore, that the court *a quo* reached the conclusion that the place is a public burial place. More significantly, counsel submitted that the court can take judicial notice of the fact that the approach to the Minister has already been made and there have been objections filed and that process is already under way anyway.

25. Regarding the issue raised about other siblings, counsel submitted that, that was an issue distinct and separate from the existence of a right. It will be for the decision maker to decide whether that right ought to be exercised. Regarding the deceased being left to rest in peace, he submitted that that is an ecclesiastical question beyond the realm of what human beings in this world know.

26. Counsel further indicated that the respondents had already proceeded in terms of the order of the court *a quo* and had approached the relevant administrative authorities and had published the intention to exhume the remains of the deceased in the Government Gazette and a newspaper as required by law. He reiterated that the respondents have the right to seek the

exhumation of the deceased and that more than fifty objections have already been lodged with the Minister. That, he submitted, is the right forum to deal with the objections, and not this Court. Furthermore, that the appellant should therefore take their objections to the appropriate decision maker, being the Minister, for them to be heard in the appropriate forum. He further submitted that ultimately, following due process is the same as approaching the Minister for the relief craved.

By the fourth, fifth and sixth respondents

27. Counsel for the fourth to sixth respondents submitted that, having filed no papers in the court *a quo*, they were not opposed to the appeal but would abide by the decision of the Court.

MOOTNESS

28. On 22 May 2025, the Court reserved judgment. On 23 May 2025 this Court, through the Registrar, directed parties to file supplementary heads of argument and address it on whether or not the present matter had not become moot, in view of the indication that the respondents had already placed the matter before the relevant administrative authority in accordance with the judgment of the court *a quo*.

RESPONDENTS' SUBMISSIONS ON MOOTNESS

29. In their supplementary heads of argument, the respondents submit that the matter is now moot. They submit that the publication of the notice to exhume has already been published in the Government Gazette. The respondents further submit that as of the date of the hearing of this appeal there were in excess of fifty objections to the application or notice of intention for the exhumation of the deceased's remains. The respondents argue that the effect of this is that the judgment of the court *a quo* has been given effect in so far as it declares the first and second

respondents' rights to seek exhumation. The respondents further submit that it is in the best interest for this Court to pronounce itself on the mootness question, more so because the objections to the exhumation largely point to the present appeal as already dealing with the matter. The respondents therefore argue that the appeal is moot, but must nonetheless be determined in order to put to rest the dispute between the parties.

APPELLANT'S SUBMISSIONS ON MOOTNESS

30. The appellant submits that the matter is not moot. The appellant argues that neither the court nor the appellant have the record of proceedings before the relevant Minister. The appellant urges this Court to confine itself to the record of proceedings that is before it. The appellant contends that the respondents ought to have made an application to lead further evidence therefore, the issue of the matter being presently before the Minister was incompetently raised. The appellant further argued that in any event, the judgment of the court *a quo* was suspended on noting of the appeal. The appellant further argues that the question before the court *a quo* was whether there should be an exhumation and such exhumation has not yet been done. The appellants therefore argued that there was still a live dispute between the parties.

ISSUES FOR DETERMINATION

31. *Prima facie,* the following would appear to be issues that must be determined in this appeal:

    1. Whether or not this appeal is moot.
    2. Whether or not the remains of the deceased are susceptible to ownership.
    3. Whether or not the appellant pleaded prescription.
    4. Whether or not the matter was *res judicata*.

5. Whether or not the court *a quo* erred in failing to find that the shrine did not fall within the definition of a place susceptible to exhumation in terms of the Cemeteries Act [*Chapter 5:04*]

ANALYSIS

Mootness

32. It is appropriate that the issue of the mootness of the matter be determined at the outset. The respondents contend that the matter is moot as a notice to exhume has already been published in the Government Gazette and in the Herald (newspaper). Thereby, the judgment of the court *a quo* has been given effect to. Objections are alleged to have already been lodged in response to the notice and are said to largely state that the present appeal is dealing with the matter. They contend that though moot, it is in the interests of justice that the appeal must be determined in order to put to rest the dispute between the parties.

33. The appellant, on the other hand, is of the view that the matter is not moot. It contends that neither the Court nor the appellant is privy to the record of proceedings before the Minister. Furthermore, the respondents ought to have applied to lead further evidence on appeal. As they did not, the issue of the matter being presently before the Minister was incompetently raised. In addition, the judgment of the court *a quo* was suspended by the noting of the appeal. The dispute is still live between the parties.

34. If the noting of the appeal suspended the judgment of the court *a quo* that would create a situation where the respondents ought not to have initiated the process under the Cemeteries Act. In that situation, the process begun after the judgment would be a nullity and the issue of mootness would not arise. If, on the other hand, the appeal did not suspend the said

judgment and there was no impediment to the process that was thereafter initiated, that would render this appeal moot.

35. The question to be answered is whether the filing of this appeal suspended the judgment of the court *a quo.*

36. In *Musa Kika* v *Luke Malaba & 3 Ors* HH 287/21 the following was stated:

> "42. All the parties in fact draw on the case of *Econet (Pvt) Ltd* v *Telecel Zimbabwe* (Pvt) *Ltd* 1998 (1) ZLR 149 (HC) at p 154 in particular to vociferously argue their standpoints on the effects of any appeal on a declarator. In that case, in declaring that the noting of the appeal does not suspend the declaratory order granted, the judge made the following remarks:
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> > In *Mushaishi* v *Lifeline Syndicate & Anor* 1990 (1) ZLR 284 (H) at 288 G, GREENLAND J said:
> >
> > > 'My ruling is, in effect, declaratory, i.e. to declare what the law provides. **The applicant now enjoys nothing that he did not enjoy before launching the proceedings except the comfort of having had the court confirm his legal opinions.** Still, as the facts reveal a competition for rights in respect of the claims, justice, common sense and good order require judicial confirmation on this issue and the seeking of a declaratory order was indicated.' (The emphasis is added)
>
> 43. The applicant argued that this case sets out the effect of a declaratory order whilst the respondents argued that the remarks in the *Econet* case were within a given context of what had been placed before the judge. Declarators are granted across a broad spectrum of fields and issues. For orders that are purely declaratory what often binds adherence to the interpretation accorded is the good faith of the parties in upholding the law if they know what the law is. The argument that a purely declaratory order cannot be appealed against makes sense from the perspective of being issue preclusive. The declarator may indeed have been resolutive on the score of addressing how the law applies to the circumstances that were outlined but there is no law which prohibits the other side from laying claims that could have been made with respect to the declarator. The appeals have indeed raised both reviewable and appealable issues. There is also no reason why even a purely declaratory order would exclude inherent review by the Supreme Court in terms of s 25 of the Supreme Court Act [*Chapter 7:13*] in those instances where some procedural irregularity is implied.

44. But even if it is accepted that the declarator was a pure one, it is highly doubtful that contempt be the remedy for its enforcement.

> 'The only difference between **a declaratory judgment** and an executory judgment lies in the fact that the former **gives a successful plaintiff no right to an execution or other process to carry the judgment into effect.** It does however make a final binding declaration of the rights and duties of the parties to the controversy.'

45. Where the argument is that a *declaratur* contains consequential relief which impacts on the rights of the other party it would certainly be appealable as asserted by counsel for the first to the fourth respondents. In our view, it will be for the Supreme Court to conclude whether the appeal encroaches on the seemingly "issue preclusive order" granted. It will also be for the Supreme Court to decide for that matter, whether the assertions made about the order amounts to an attempt at reconstructing that order or whether they are legitimate concerns that the order **reconstituted the first respondent's rights.** In the case of *Intratrek Zimbabwe (Private) Limited* v *Zimbabwe Power Company (Private) Limited* HH 440/19 the judge too left it to the Supreme Court to decide whether an appeal suspends a declaratory order. That determination was however not made as the case was decided on other grounds. Whether the declarator violated his individual rights within the wider context will be for the Supreme Court to determine." (The emphasis is added)

Note is made that for the inner quote in para 44 above, the learned judge cited WILLIAM H Wicker in *Declaration of rights without Consequential Relief* 11 Tenn Law Rev 217 1932-33 at p 221.

37. The *Mushaishi* v *Lifeline Syndicate & Anor* quote was quoted in greater detail in the *Econet (Pvt) Ltd* case where the following was stated:

> "In *Mushaishi* v *Lifeline Syndicate & Anor* 1990 (1) ZLR 284 (H) at 288 G, GREENLAND J said:
>
> > 'My ruling is, in effect, declaratory, i.e. to declare what the law provides. The applicant now **enjoys nothing that he did not enjoy before launching the proceedings** except the comfort of having had the court confirm his legal opinions. Still, as the facts reveal a competition for rights in respect of the claims, justice, common sense and good order require judicial confirmation on this issue and the seeking of a declaratory order was indicated.'

> Mr Stonier conceded that the above correctly sets out the effect of a declaratory order. He also accepted that para 1 of the order by SANDURA JP was framed as a declaratory order. He argued, however, that the substance of the order was such that it gave rights to the parties and did not merely declare what the legal position is. Once more, I cannot accept the submission. SANDURA JP was clearly enunciating the legal rights of the parties consequent upon the failure by the Minister to complete the administrative procedures within the timetable specified by the Supreme Court. He did not purport to grant a licence to Econet. He merely declared that that was the effect of the order of the Supreme Court once the Minister failed to do what she was required to do. Accordingly, **in my view, since para 1 of the order granted by SANDURA JP was merely confirming the rights of Econet, the noting of the appeal could not suspend the effect of that paragraph as it does not confer any rights."** (The emphasis is added)

38. *In casu,* the court *a quo* merely stated or confirmed the respondents' right to follow due process in seeking to exhume the remains of the deceased. This will be further demonstrated in the analysis of the matter hereunder. As such, the noting of this appeal would not have suspended the judgment of the court *a quo* which did not give the respondents any rights that they did not enjoy before approaching the court. The right inhered in the respondents even before the said judgment. Whether they will succeed in pursuing that right and obtaining the relief that they desire is a different issue altogether. There having been no hindrance to the process started by the respondents in terms of the Cemeteries Act, this appeal has therefore been rendered moot.

39. In *Bere* v *JSC & Ors* SC 1/2022, this Court stated as follows:

> "The doctrine of mootness has been discussed in a number of case authorities in this jurisdiction. In *Thokozani Khuphe & Anor* v *Parliament of Zimbabwe & Ors* CCZ 20/19 at p 7, the Court remarked as follows:
>
> > 'A court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy. The position of the law is that if the dispute becomes academic by reason of changed circumstances the Court's jurisdiction ceases and the case becomes moot. … The mere fact that the matter is moot does not constitute an absolute bar to a court to hear a matter. Whilst a matter may be moot as between the

> parties, that does not without more render it unjusticiable. The court retains a discretion to hear a moot case where it is in the interests of justice to do so. …'

In *Chombo* v *Clerk of Court, Harare Magistrates Court (Rotten Row) & Ors* CCZ 12/20 at pp 7 to 8, the Court held that:

> "… The overriding consideration is whether or not it is in the interests of justice that the matter be heard."

40. In *Johnsen* v *Agricultural Finance Corp* 1995 (1) ZLR 65 at 72 it was held:

> "The court will not decide abstract, academic or hypothetical questions unrelated thereto. But the presence of an actual dispute or controversy between the parties interested is not a prerequisite to the exercise of jurisdiction.

41. *In casu,* it is my view that the nature of the dispute is such that although the appeal is moot, it is in the interests of justice as well as the public interest that the Court should exercise its discretion and proceed to hear and determine the matter.

JUDICIAL NOTICE

42. The respondents' position was that the Court can take judicial notice of the publication in the Government Gazette of the application and notice.

43. The question arises whether the Court can take judicial notice of the notice and application filed in the Government gazette. An image thereof affixed to the respondents' supplementary heads of argument reads as follows:

> "**CEMETERIES ACT [*CHAPTER 5:05*]**
>
> ---
>
> Application for the Exhumation of Human Remains
>
> ---
>
> NOTICE is hereby given, in terms of s 38 of the Cemeteries Act [*Chapter 5:04*], that the son of the late Peter Jack Masedza also known as Johane Masowe, intend to exhume and rebury his father, who died on the 14th September, 1973, and was

buried in Gandanzara, Makoni, Manicaland, on the 17th September, 1973. The exhumation is being carried out for the purpose of reburial in the family rural home. Any person with objections or concerns regarding this exhumation should contact Magaga Masedza, c/o Mushangwe & Company Legal Practitioners, Seventh Floor, LAPF House, Jason Moyo Avenue/Chinhoyi Street, Harare."

44. Section 24 of the Civil Evidence Act, [*Chapter 8:01*] provides as follows:

"**24 Judicial Notice**
(1) A court shall take judicial notice of the following—

(a) the law of Zimbabwe; and

(b) decisions of the High Court or the Supreme Court, if reported or recorded in citable form; and

(c) any enactment published in or as a supplement to the *Gazette*; and

(d) any other matter whatsoever which, in terms of rules of court or any other enactment, the court is required to accept as correct or of which it is required to take judicial notice.

(2) Subsection (1) shall apply without prejudice to Part VII of the Interpretation Act [*Chapter 1:01*].

(3) **A court may and, if the necessary information is supplied, shall take judicial notice of any fact which is not subject to reasonable dispute in that it is—**
(a) **generally known among reasonably informed people in Zimbabwe or within the area of jurisdiction of the court; or**

(b) **capable of accurate and ready determination by resort to sources whose accuracy cannot reasonably be questioned."** (The emphasis is added)

45. In *S* v *Ndlovu*, 1983 (2) ZLR 263 (S) at 267C - D, GEORGES CJ had this to say:

"Hoffman, in his *Law of Evidence* (2 ed) at 291, sets out the basic principle underlying the concept of judicial notice:

> 'A court takes judicial notice of a fact when it accepts it as established, although there is no evidence on the point. Generally speaking, judicial notice will be taken of facts which are either **so notorious as not to be the subject of reasonable dispute, or which are capable of immediate and accurate demonstration by resort to sources of indisputable accuracy.** The date of Christmas would fall within the first category, while the date of Easter in a particular year would be an example of the second.'

> While the principles are simple enough to state, the results of their application might well occasion surprise to the layman who may be inclined to accept as indisputable matters which are quite liable to being successfully disputed."

He proceeded to state at 267G:

> "It must also be borne in mind that a fact cannot be said to be notorious merely because the judge is well aware of it as an individual." (The emphasis is added)

46. In *Shumba & Ors* v *The State* HH 304/25 at para 16, the court, in summarizing the import of *S* v *Ndlovu, supra,* stated as follows:

> "16. In summary, the principle of judicial notice, as explained by the Supreme Court refers to a court accepting facts as established without requiring formal evidence if the fact is either **(a) so well known that it cannot reasonably be disputed or (b) capable of immediate verification through sources of indisputable accuracy.**" (The emphasis is added)

In *Sangweni & Anor* v *The State* [2025] ZAKZPHC 11 at pp 11-12, the following was stated:

> "The doctrine of judicial notice allows a judicial officer to accept certain facts as correct without the need to lead evidence to prove those facts. Judicial notice can be taken of facts
>
> > 'So notorious as not to be the subject of reasonable dispute (for instance, the date of Christmas), or which are **capable of immediate and accurate demonstration by resort to sources of indisputable accuracy** (such as the date of Easter in a particular year).'" (The emphasis is added)

47. It is generally known that the purpose of the Government Gazette is to officially publish new legislation, statutory instruments, government notices and other legal matters. Furthermore, that the law presumes that the public has been notified once a notice is published in the Gazette. Thus, courts treat the contents of the Gazette as established facts that do not require formal proof in court. *In casu*, the publication of a notice or notices in the Government Gazettes of 25 March 2025, 25 April 2025 and 23 May 2025 was not disputed by Mr *Hashiti*, for the appellant. What he submitted was that there ought to have been an application to lead

further evidence on appeal. The presumption by the law that the public has been notified of what has been published in the Government Gazette has legal consequences and is not dependent on, or informed by the fact of, the public having seen and read the contents. By presumption of law, the content is established. Thus, whether or not evidence is led in the manner submitted by Mr *Hashiti*, a notice has been published in the Government Gazette "for the Exhumation of Human Remains" of "the late Peter Jack Masedza also known as Johane Masowe." I take the view that the Gazette ought to be considered as a source of indisputable accuracy to which resort can be had for the purpose of immediate and accurate verification and that the Court can take judicial notice of the publication of the said application and or notice.

The court *a quo*'s analysis

48. At pp 12 - 13 of the judgment of the court *a quo*, it is stated as follows:

> "The applicants' averments that it accords with traditional customs that children must bury their parents and have access to their graves, build tombstones and preserve the graves as family heritages was correctly submitted. The direct and substantial interest of the applicants in the order they seek is amply demonstrated. A judgment for or against them in the subject matter will affect them substantially. Their interest is not academic. The applicants allege that because of denial of access to their father's burial place, they are prejudiced as they cannot have any connection with the remains of their father. They seek a reburial to a place where the applicants would not be denied access. **The applicants therefore have *locus standi* to bring this application. The right to seek the declaration is not synonymous with the grant of the right**. …
> …
>
> The first respondent averred that the application was frivolous because it was being made more than 20 years after the death of the deceased. It was however noted that **prescription was not pleaded.** It appears that the parties were in the courts on related matters in the intervening period. Nothing will turn on the issue of the delay to bring this application.
>
> The first respondent submitted that the remains of the deceased lay interred in or at a shrine and not a cemetery. It was submitted that a cemetery was described as a "public cemetery" in the definition section under the Cemeteries Act. The submission was

also made that HUNGWE J (as he was then) had in judgment HH 164/2003 stated that the place where the deceased's remains were interred was a shrine which was more than a graveyard but a place of worship. **The remarks were orbiter and in any event the issue of whether or not the children of the deceased could claim his remains and seek the exhumation of the same did not arise for termination.** *(sic)* There was no declaration made that the remains of the deceased had become the property of the first respondent. **It is in my view open to the applicants in the circumstances to seek the exhumation of the deceased's remains. The applicants cannot be barred from making an exhumation claim of the remains of the deceased.** The matter is however not that simple.

The first respondent's counsel referred to s 38 (4) of the Cemeteries Act. It provides as follows:

…

There is no doubt that **the issue of places of burial and exhumations involve the Minister who administers the Cemeteries Act.** The first respondent's counsel strenuously argued that the Act in relation to exhumations or body removals applied to a closed cemetery. It was argued that the Act applied to a public cemetery. I did not find the definition of public cemetery in the Act. It appears to me therefore that a public cemetery has to be a place where the public can be buried and have access thereto. There was no submission made that the public cannot be buried at the same place as where the deceased is buried. If for example no one else can be buried there, then it is a place closed to further burials. A cemetery is a place where dead people are buried. **There is nothing in the law to indicate that if the place at which a dead body has been buried has been turned into a shrine, then no exhumation may be done at the shrine.**

The first respondent is however correct that whether a cemetery is closed or not is a Ministerial driven process in terms of s 36 of the Cemeteries Act. In terms thereof the Minister acting with Presidential Consent may direct the closure of a cemetery. It is only from a closed cemetery that according to the first respondent, an exhumation may be made. **I propose to refrain from addressing and resolving the submission to avoid prejudging the matter. It is clear that process and procedures for exhumation of buried remains of deceased people are governed by statute. An exhumation must be authorised by the Minister of Local Government, Rural and Urban Development or other Minister whom the President may assign the administration of the Cemeteries Act. The applicants did not aver that they ever sought authority or approval of the responsible Minister or that they followed statutory procedure. They however accepted that exhumations had to be authorised by Government or by a court order.**

Taking up from the applicant's submission, **the courts will not interfere in matters of executive function and more so where they are governed by statute. The role of the court is not spelt out in the Cemetery (*sic*) Act. However, the role of the Minister is spelt out. The doctrine of separation of powers must be observed and respected. The courts do not interfere with executive functions save on review on**

> **cognizable grounds of review. The applicants did not justify their approach to court as the point of first call.**
>
> The applicants have established their case for a *declaratur* that **they have a right to seek the exhumation of the deceased's remains. The applicants have established their right and substantial interest in the exhumation which they want to seek.** They however want the court in the subsidiary case HC 1785/23 to grant consequential relief that they can proceed with exhumation.
> …..
>
> **With the applicant and the first respondent being at one that the exhumation is governed by the Cemeteries Act, it is clear that the consequential relief cannot be granted as claimed because the applicant did not follow the requirements for exhumation. The matter must end there because commenting further may confuse the processes to be followed with parties then arguing that the court has already decided the issues.** The application for consequential relief Case No. HC 1781/23 does not preclude the applicants from seeking consequential relief after following due process." (The underlining is added)

49. In my view, the quoted excerpt captures the nub of the matter that was before the court *a quo* and how the court *a quo* analyzed it culminating in the determination and order that it made as captured in para 15. The court *a quo* did not grant permission to the respondents or authorize them to exhume the remains of the deceased. The learned judge acknowledged and found that the respondents had the right or legal standing to seek the exhumation of the remains of the deceased. He also found and held that despite having the said right or standing, they had to follow due process. In his reasons for judgment he clarified that due process involved the Minister responsible for the administration of the Cemeteries Act. Furthermore, that the court was not the proper first port of call in seeking such relief.

50. It is also my view that the court *a quo*'s view and the reasons given therefor, that the courts are not the appropriate first port of call for the respondents in their quest for authorization or permission to exhume the remains of the deceased, are sound at law and accordingly correct. The finding *a quo* accords with the need for parties to first exhaust domestic remedies

provided by statute. See *Chiduku & Ors* v *Chiduku* SC 56/24 at pp 13–14. That, in my view, should be the end of the matter. The respondents are still to seek and if successful, obtain permission or authorization to exhume the remains of the deceased. In doing so, their first port of call is not the court *a quo*; they are to do so in terms of the Cemeteries Act. In fact, as submitted by Mr *Uriri,* for the respondents, and affirmed by the notice in the Gazette, they have already set the necessary process in motion and objections have been filed in response thereto. That, as aptly submitted by Mr *Uriri,* is the proper forum for respondents' application and whatever objections the appellant may raise to the exhumation, to be heard and determined.

RES JUDICATA

51. The appellant's claim that the matter is *res judicata* because of the HUNGWE J's judgment has no merit for the simple reason that HUNGWE J (as he then was) was dealing with a claim for visitation rights by the respondents and not an application to exhume the remains of the deceased. The subject matters or causes of action are different. The remarks made by HUNGWE J in that matter were made in the context of the matter that was before him relating to visitation or access rights. The process before the Minister relates to a different subject matter, to wit, exhumation. *Res judicata* is thus inapplicable and ought not to detain the Court any further. In like manner, the characterization of the burial place need not detain the court.

52. It is my further view that issues 2 and 3 as identified at para 31 above, would, if related to by this Court, amount to this Court pre-determining issues that should properly be determined in the process alluded to. This Court has thus only related to issues 1, 4 and 5.

DISPOSITION

53. The respondents did not get the substantive relief allowing for the exhumation that they desire, from the court *a quo*. What they left the court *a quo* with, was a declaration that they had the right or legal standing to seek exhumation from the proper forum. This is a right that they already had before instituting proceedings in the court *a quo.* Before instituting the applications that they did *a quo,* they could properly have initiated the process that they have only since started after the judgment was given. The respondents could in a way be said to have unnecessarily made an application in the wrong forum.

54. It also follows, that the judgment not having defined any substantive rights of any party but only having spelt out or declared the respondents' procedural rights, the appellant, in real terms, had no cause to appeal. The court *a quo* did not grant an exhumation order. The appellant seems to be "appealing" against the "idea" and not an order for exhumation, as there is none. The outstanding issues that this Court has not determined raise issues for ventilation and determination in the appropriate forum for dealing with the respondents' application at the first instance.

55. The appellant has raised grounds of appeal as if against an order granting the respondents the go-ahead to exhume the remains of the deceased. This might be the result of a misreading or miscomprehension of the judgment of the court *a quo.* This appears to be confirmed by the appellant's spirited and vehement refusal of the order that the Court proposed in an endeavour to settle the appeal expeditiously, with no prejudice being occasioned to any of the litigants. The proposed order would merely allow the parties to ventilate their dispute in the right place and avoid making the courts the first port of call in seeking the exhumation of the deceased's remains. Any party aggrieved by the decision of the Minister under the process initiated by

the respondents under the Cemeteries Act would then have available to them, the remedy of recourse to the courts.

56. The appellant did not acknowledge that it was aware of the process initiated by the respondents in terms of the Cemeteries Act. It did not indicate if it had lodged objections. Neither did it indicate that it was unaware of the same and would have lodged objections if it had been aware of that process.

57. The court *a quo* having correctly found that it could not be the decision maker of first instance in the quest by the respondents to exhume the remains of their deceased father and having made the order that it did as reflected in para 15 above, the appeal's inevitable fate is therefore a dismissal. It has no merit. Costs will follow the cause.

58. In the result, it is ordered as follows:

"The appeal be and is hereby dismissed with costs."

CHIWESHE JA : I agree

MUSAKWA JA : I agree

Venturas & Samukange, appellant's legal practitioners.

Mushangwe & Company, 1st & 2nd respondents' legal practitioners.